

Doppes v. Bentley Motors, Inc. (2009) 174 Cal. App. 4th 967, 992 (internal citations omitted).

Plaintiff's declaration filed July 21, 2026 contains responses to the outstanding discovery. While the responses were untimely and may be insufficient (the Court is making no finding in that regard), they show that Plaintiff is attempting to comply with his discovery obligations. Under the circumstances, the imposition of terminating sanctions would be unjust. There is insufficient evidence that the discovery violations were willful or that less severe sanctions would not produce compliance with the discovery rules. *Id.* While less severe sanctions such as issue or evidentiary sanctions would appear appropriate, none were requested. The Court cannot issue an order awarding monetary, issue or evidentiary sanctions since Plaintiff has not been provided notice of that request in the underlying notice of motion and memorandum of points and authorities.

The motion is **DENIED** without prejudice to Defendant filing a new motion for monetary, issue or evidentiary sanctions, if there are additional discovery violations including and not limited to failing to comply with the Court's order compelling Plaintiff's deposition discussed below. A proposed order was lodged with the Court and will be modified to reflect the denial.

Tentative Ruling on Motion for Order Compelling Plaintiff's Deposition: Defendant Joshua Littlepage moves for an order to compel Plaintiff to attend a deposition pursuant to CCP § 2025.420. The motion is unopposed.

If a party served with a deposition notice fails to appear for their deposition without serving a valid objection, the party giving notice may move for an order compelling the deposition. CCP § 2025.450. Defendant's evidence establishes that Plaintiff was properly served with a deposition notice, failed to object to the deposition notice and failed to appear for the deposition.

Defendant's Motion to for Order Compelling Plaintiff's Deposition is **GRANTED**. Plaintiff shall appear for his deposition within 30 days of service of the notice of entry of order. A proposed order has been lodged and will be modified.

JEFFERSON CAPITAL SYSTEMS, LLC VS. PENDRAK
CASE NUMBER: 25CV-0208892

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on June 30, 2026, to Plaintiff and Counsel for failure to timely seek default pursuant to CRC 3.110(G). No response to the OSC has been filed. No request for entry of default has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. An appearance is necessary on today's calendar. Failure to appear will result in the issuance of an order to show cause re dismissal.

JUNEMAN VS. FCA US LLC, ET AL.
CASE NUMBER: 25CV-0207145

Tentative Ruling on Motion for Sanctions: Defendant FCA US, LLC moves for sanctions under CCP 871.26(j) based on Plaintiff's failure to comply with the disclosure requirements set forth in CCP 871.26(b). The Motion is properly noticed and is unopposed.

CCP § 871.26(b) provides that within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).